



General Assembly

February Session, 2026

Substitute Bill No. 384



***AN ACT REDEFINING "EXECUTIVE BRANCH AGENCY" FOR
PURPOSES OF DATA GOVERNANCE.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 4-67o of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective July 1, 2026*):

3 As used in this section and sections 2-79e, 4-67p and 4-67z:

4 (1) "Data" means the final version of statistical or factual information
5 that: (A) Is reflected in a list, table, graph, chart or other non-narrative
6 form that can be digitally or nondigitally transmitted or processed; (B)
7 is regularly created or maintained by, or on behalf of, an executive
8 branch agency; and (C) records a measurement, transaction or
9 determination related to the mission of the agency or is provided to the
10 agency by third parties pursuant to law.

11 (2) "Executive branch agency" means any state agency, [listed in
12 section 4-38c, except the Board of Regents for Higher Education] as
13 defined in section 4d-1, except the constituent units of the state system
14 of higher education and the offices of the Secretary of the State,
15 Comptroller, Attorney General and Treasurer.

16 (3) "High value data" means any data that the department head
17 determines (A) is critical to the operation of an executive branch agency;
18 (B) can increase executive branch agency accountability and

19 responsiveness; (C) can improve public knowledge of the executive
20 branch agency and its operations; (D) can further the core mission of the
21 executive branch agency; (E) can create economic opportunity; (F) is
22 frequently requested by the public; (G) responds to a need and demand
23 as identified by the agency through public consultation; or (H) is used
24 to satisfy any legislative or other reporting requirements.

25 (4) "Open data" means any data that (A) is freely available in
26 convenient and modifiable format and can be retrieved, downloaded,
27 indexed and searched; (B) is formatted in a manner that allows for
28 automated machine processing; (C) does not have restrictions
29 governing use; (D) is published with the finest possible level of detail
30 that is practicable and permitted by law; and (E) is described in enough
31 detail so users of the data have sufficient information to understand (i)
32 the strengths, weaknesses, analytical limitations and security
33 requirements of the data, and (ii) how to process such data.

34 (5) "Public data" means any data collected by an executive branch
35 agency that is permitted to be made available to the public, consistent
36 with any and all applicable laws, rules, regulations, ordinances,
37 resolutions, policies or other restrictions, requirements or rights
38 associated with the data, including, but not limited to, contractual or
39 other legal restrictions, orders or requirements.

40 (6) "Protected data" means any data the public disclosure of which
41 would (A) violate federal or state laws or regulations; (B) endanger the
42 public health, safety or welfare; (C) hinder the operation of the federal,
43 state or municipal government, including criminal and civil
44 investigations; or (D) impose an undue financial, operational or
45 administrative burden on the executive branch agency. "Protected data"
46 includes any records not required to be disclosed pursuant to subsection
47 (b) of section 1-210.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	July 1, 2026	4-67o
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Statement of Legislative Commissioners:

The title was changed.

GAE *Joint Favorable Subst. -LCO*